

A3 — What would put this bid out (working draft)

State after ADD-02 (issued 2026-10-22); Proposal Due Date (PDD) 2026-11-26 14:00 Riyadh time. 16 (+ VOL-IV-F4C-N1, which restates VOL-I-9.4-01) explicit bid-out triggers + 1 below the score threshold = 18 A3 rows. WD: Working Day; PBN: Preferred Bidder Notification; LCC: Local Content Certificate; PCOD: Project Commercial Operation Date; †: decide before submission (no decision recorded); ■: a legal, commercial or technical judgment no one has recorded.

WORKING DRAFT — every register row and amendment op is PROPOSED: 205 rows. Image readings: transcriptions and displayed translations confirmed by the owner (approval file); their interpretations are proposed. Explicit wording only. Shortened to fit one page.

Explicit — Rejection: 5

VOL-I-6.1-01 Deliver the Proposal to the Authority by the Proposal Due Date and time, at the Appendix 3 address — “Thursday 26 November 2026” [VOL-I 6.6 p3; the requirement as amended: ADD-01 2.1 p1 (amending VOL-I 6.1) · confidence high] **INFEASIBLE on PROVISIONAL assumed lead times: Local Content Certificate 30 WD, not stated in the pack; float -12 WD; I-LCC-ISSUER · amended by addendum**

VOL-I-8.5-01 Evidence at least two (2) reference sewage treatment plants of at least 80,000 m3/day, each having achieved commercial operation within the ten (10) years preceding the Proposal Due Date — window starts 2016-11-27 (2016-11-26 if boundary inclusive): 10 years before the PDD 2026-11-26 [VOL-I 8.5#in12 p4 · confidence high] **see ADD-01/2.2, ADD-01/Q5**

VOL-I-1.4-01 Only a Bidder prequalified under RFQ NUPA/ISTP/2025/031 and named in Appendix 1 may submit a Proposal [VOL-I 1.4 p2 · confidence high]

VOL-I-8.1-01 Bid as the prequalified entity or consortium; no change to composition, shareholding or lead member without the Authority's prior written consent [VOL-I 8.1 p4 · confidence high]

VOL-I-8.2-01 No firm or affiliate of a member may participate in more than one Proposal [VOL-I 8.2 p4 · confidence high]

Explicit — Disqualification: 2

VOL-I-5.4-01 Be represented at the Pre-Bid Conference on 30 September 2026 — held 2026-09-30 (before the status date): compliance is a bidder fact to confirm (I-BIDDER-FACTS); ADD-01 3.1 window closed 2026-10-14 (2026-10-15 if event day excluded) [VOL-I 5.4 p3 · confidence high]

VOL-I-4.2-01 Blackout: no contact with the Authority's board, staff, consultants or advisors about the Project other than through the Portal, until the PBN [VOL-I 4.2 p3 · confidence high]

Explicit — Non-responsive: 8

VOL-I-8.6-01 Local Content Certificate from the competent authority showing the minimum construction-phase local content ratio — “not less than thirty-five per cent (35%) for the construction phase” [ADD-02 9.1 p3 (reinstating VOL-I 8.6) · confidence high (■ I-LCC-ISSUER)] **INFEASIBLE on PROVISIONAL assumed lead times: Local Content Certificate 30 WD, not stated in the pack; float -12 WD; I-LCC-ISSUER · see ADD-01/4.2 · reinstated by addendum**

VOL-I-9.3-01 Form 4-A (as reissued by ADD-01 App A) signed by a person holding a notarised Power of Attorney from the lead member; an unsigned or improperly executed Form 4-A renders the Proposal non-responsive [VOL-I 9.3 p5 · confidence high (■ I-F4A-FIELDS)]

VOL-I-9.4-01 Form 4-C completed in Arabic, signed and stamped by an authorised signatory of each member [VOL-I 9.4 p5 · confidence high] — also stated in **VOL-IV-F4C-N1** (VOL-IV F4-C/image/note p6, confidence medium), VOL-IV F4-C/para1 p5; ADD-02 Q9: English with an Arabic translation is not acceptable

ADD-02-7.2-01 Complete and submit the new Form 4-G (cybersecurity undertaking) with Envelope A [ADD-02 7.2 p3 · confidence high] **new by addendum**

VOL-I-6.2-02 No price, rate or other commercial information anywhere in Envelope A [VOL-I 6.2 p3 · confidence medium (see I-VOL-I-ENV-A-PRICES)]

VOL-I-9.6-01 Form 4-E lists every deviation, qualification or reservation to Volume V; never 'no deviations' with a qualification elsewhere [VOL-I 9.6 p5 · confidence high (■ I-CONCESSION)]

VOL-I-10.5-01 No conditional price, alternative price, or price subject to adjustment other than as provided in Volume V [VOL-I 10.5 p5 · confidence high]

VOL-I-11.5-01 A response to an Authority clarification request must not change the Availability Payment quoted [VOL-I 11.5 p5 · confidence high]

Explicit — Exclusion (Arabic text only; not equated with the other categories; I-F4C-EXCLUSION): 1

VOL-IV-F4C-04 Form 4-C declaration 4 (Arabic only): all information in the Proposal is true and complete [VOL-IV F4-C/image/decl4 p6 · confidence medium]

Explicit — Envelope B returned unopened (technical score below the threshold): 1

VOL-I-11.3-01 Technical score of at least 70 out of 100 to proceed to commercial evaluation [VOL-I 11.3 p5 · confidence high]

General gate — mandatory, pass or fail; no bid-out consequence stated (VOL-I 11.1(i)): 36

Mandatory; no bid-out consequence stated. VOL-I 11.1(i) is a general pass/fail check; the pack does not say which clause is checked at which stage (8 are Envelope B items, VOL-I 11.3). No clause-specific label or curability is implied (I-NO-CONSEQUENCE). Rows: a3_detail.html.

Unresolved matters, grouped — 52 open issues (25 listed), 21 clarification questions drafted (not sent)

52 open issues: 25 listed, 22 folded (+n), 4 on a3_detail.html only, I-NO-CONSEQUENCE in the gate note. Line: id, reason (owner); † 11 unresolved, 6 not supplied, 9 needed by A5 before the PDD. Unknown answers stay unknown. Questions: clarification register (supporting record, out/a4/clarification_register.*).

Forms and declarations (5) questions drafted: 3 (on no listed issue: CQ-F4D-GUARANTEE-SCOPE (guarantee scope); no bid-out row)

† **I-F4A-FIELDS** ■ Reissued Form 4-A (ADD-01 App A): stale PDD, dropped fields, a missing 'paragraph 1': what to print and sign (Legal) +2

† **I-F4C-EXCLUSION** ■ Form 4-C decl. 4 (Arabic): 'exclusion of the proposal', not equated with any category of the English volumes (Legal)

I-F4G-LETTERING Form 4-G: re-lettering of the VOL-I 9.1 list (Bid manager) +1

† **I-F4G-NO** ■ Form 4-G: effect of a 'No' not stated; undertakings 3-6 add post-award duties not in VOL-II 6 (Technical)

† **I-F4D-WORDING** ■ Form 4-D: how far its wording may change ('substantially in the form', VOL-I 8.7) (Legal)

Envelopes, copies and files (5) questions drafted: 5

† **I-VOL-I-ENV-B** ■ Envelope B holds 'only' Form 4-F and the model (VOL-I 10.1), yet 10.3 and 10.6 need more documents (Legal)

† **I-VOL-I-ENV-A-PRICES** ■ No commercial information in Envelope A (VOL-I 6.2), yet Form 4-B there asks for contract values (Legal) +2: ■

I-FORM-4E-COMMERCIAL-QUALIFICATION (Legal counsel); I-FORM-4E-CROSS-CHECK (Bid manager)

† **I-VOL-I-COPIES** how the single USB copy relates to the two separately sealed envelopes and how its means of decryption is given (Bid manager)

I-VOL-I-FILE-NAMES Excel Financial Model vs the Appendix 2 naming convention (ends in '.pdf'; [BIDDER] and [YYYYMMDD] undefined) (Bid manager)

I-VOL-I-APPENDICES page-limit appendices not identified (Bid manager) +1

Technical, permit and design basis (3) questions drafted: 4 (on no listed issue: CQ-PCOD-RELIABILITY-RUN (rolling averages in the 30-day reliability run); CQ-RESERVOIR (treated effluent storage reservoir); no bid-out row)

I-READING-T24 Table 2-4: anything outside the visible image (e.g. whether a further note was cut off below Note 1) (Owner)

† **I-FLOWS** ■ 'dry weather flow' in Table 2-6 row 2-6.4 is undefined; Q11: design to the Volume II figures (Process engineer) +1

† **I-VOL-II-T24-TENSIONS** ■ Table 2-4 'all values are maxima' vs the chlorine 0.5-1.0 and pH 6.0-9.0 ranges; UV-only? (VOL-II 3.3) (Process engineer) +2: ■

I-VOL-II-AT-ALL-TIMES, I-VOL-II-COMPLIANCE-POINT

Contract, bond and concession (3) questions drafted: 4 (on no listed issue: CQ-HANDBACK-CONDITION (handback condition); no bid-out row)

† **I-CONCESSION** ■ Concession term from PCOD (VOL-I 12.1) or Effective Date (VOL-V 3.1)? ADD-02 Q7 cites VOL-I 3.2 only (Legal) +1

† **I-VOL-I-BOND-LONGSTOP** ■ the Bid Bond's 180-day validity from the PDD (VOL-I 6.3) may end before the Financial Close long-stop (Commercial lead)

† **I-VOL-V-PERSISTENT-BREACH** ■ 'second occurrence' of a persistent breach undefined (Legal counsel)

Evaluation and scoring (1) questions drafted: 1

I-VOL-IV-SCALE five-point scoring scale undefined (Bid manager) +1

Referenced but not supplied (impact noted; not a prerequisite for completion) (4) questions drafted: 3

† **I-PERMIT** ■ The Environmental Permit is not supplied, yet it prevails over the Table 2-4 reproduction: Permit compliance is not claimed (Technical) +1

† **I-VOL-III** Volume III / Drawing 03-C-114 (delivery point, VOL-II 5.1) not supplied; no omission claim after the PDD (VOL-I 3.4) (Technical)

I-VOL-II-MISSING Environmental and Social Impact Assessment, geotechnical report, other data-room items not supplied (Technical lead) +1

† **I-VOL-V-MISSING** ■ VOL-V extract: Schedules 7, 9, 11, 12, Direct Agreement missing; unlisted deviations count as accepted (Legal counsel) +2

Programme, evidence and bidder facts (4) questions drafted: 1

† **I-LCC-ISSUER** ■ LCC issuer and lead time not stated; A5: 6 INFEASIBLE by 12 WD (PROVISIONAL Local Content Certificate 30 WD) (Commercial) +7

I-BIDDER-FACTS assumed bidder to confirm: members, foreign members, reference plants, signatories, attendance (Bid manager)

† **I-AUTO-COUNTING** day count not stated (ADD-01 3.1; VOL-I 6.3, 7.1, 8.5; Form 4-A); A1 Dates: both readings; A5: conservative (Bid manager)

I-A5-attendance-notice CONDITIONAL — window elapsed 2026-10-14 (2026-10-15 if event day excluded); whether the Bidder considers its attendance at the Pre-Bid Conference to have been incorrectly recorded (ADD-01 3.1) is not known (Bid management)

tenderpack: evidence build + curation + config/assumptions.yaml. Each id links to a3_detail.html (quotes, sources, flags) and traces to A1 and A2.